Preliminary Statement

The New York State Legislature passed the Stop Addictive Feeds Exploitation (SAFE) for Kids Act (referred to as the "Act" or the "Safe for Kids Act") because New York minors are in the midst of a mental health crisis caused by harmful social media use.[1] The Legislature found that social media companies have created feeds personalized by algorithms. These feeds can track tens or hundreds of thousands of data points about users to create a stream of media that can keep minors scrolling for dangerously long periods of time. Minors, who are less capable than adults of exercising self-control, have been particularly susceptible to these addictive feeds. The Legislature found that these hours spent on social media have caused harm to New York minors including depression, anxiety, suicidal ideation, and self-harm.

The Act prohibits social media platforms from providing minors with an addictive feed, defined as using data concerning a minor (or the minor's device) to personalize the material the minor sees, a feature linked to addictive behavior and extending time spent on social media to unsafe levels. It also prohibits covered platforms from providing nighttime notifications concerning addictive feeds between the hours of 12 AM and 6 AM. The Act allows for parental consent and includes a number of other provisions to ensure all stakeholders can enjoy the benefits of the Act without compromising their experience or their privacy.

The Legislature has charged OAG — which has significant experience with the harms of social media, privacy, and complex technical issues through its investigations and litigations, and through its in-house research and analytics team — with promulgating regulations before the statute can go into effect. The Legislature gave OAG an express directive to promulgate regulations:

- to identify "commercially reasonable and technically feasible methods" to determine that a user is not a minor before providing them with an addictive feed or nighttime notification. (G.B.L. § 1501(1)(a), (2)); and

- to identify methods of obtaining verifiable parental consent for an addictive feed or nighttime notification (G.B.L. § 1501(1)(b), (4)).

In addition, OAG is charged with promulgating regulations to effectuate and enforce the Act as a whole.

The OAG issued an advanced notice of proposed rulemaking on August 1, 2024, providing the public until September 30, 2024, to submit comments. The OAG received 47

[1] 2024 N.Y. Laws ch. 120, section 2.